

December 23, 2025

Mr. JB Pirie
Project Manager
Sapphire Gas Solutions
100 I-45 N., Suite 152A
Conroe, TX 77301

RE: Oklahoma Data Center Fire Protection Services
Muskogee, OK
Proposal No. P.011160.25

Dear JB,

Pursuant to your request, The Vertex Companies, LLC (VERTEX) is pleased to present this proposal for fire protection engineering services for the proposed Oklahoma Data Center project associated with the above-referenced matter including the following primary components:

- 1) Four (4) stationary LNG storage tanks arranged in two banks (Bank A: Tanks 1-2, Bank B: Tanks 3-4)
- 2) Two (2) cryogenic pump skids for LNG transfer from transport to tanks (N+1 redundancy)
- 3) Ambient air vaporizer bank with N+1 redundancy
- 4) Fuel gas conditioning system with trim heating capability
- 5) Common fuel gas manifold delivering to 7XGC1900 gensets
- 6) LNG receiving manifold for truck transport offload with pumped transfer
- 7) Optional ISO container pressure-building bank for auxiliary operations
- 8) PLC-based control system with remote SCADA monitoring

The equipment listed above will be used to supply natural gas to fuel fired generators, which will be used to supply approximately 10 Megawatts of power to a data center, which will likely be expanded to 20 Megawatts of capacity. Our proposal contains a Project Work Scope, Project Schedule, Fee Schedule, Terms and Conditions, and a Project Work Authorization.

1.0 PROJECT WORK SCOPE

The scope of work shall include a detailed code analysis, piping and instrumentation design, and preparation of a corresponding Fire Protection Evaluation. This shall be in

compliance with NFPA 59A, Section 12.2, for the proposed small-scale facility as required by NFPA 59A, Chapter 13, as referenced by the 2018 Oklahoma Uniform Building Code Commission. The Fire Protection Evaluation is to provide the client with a code compliant and cost-effective solution for the fire protection for this facility. Additionally, a Hazard and Operability (HAZOP) and Layer of Protection Analysis (LOPA) study, fire and gas detection design documents, fire suppression design documents, and a process hazard analysis shall be provided. Specifically, this scope shall include the following:

- 1) Facilitation of a two (2) day HAZOP/LOPA study by two (2) engineers to serve as a facilitator and a scribe – HAZOP/LOPA to be completed using online / remote conferencing software. The HAZOP/LOPA study shall include the following:
 - a. HAZOP/LOPA study for the process systems
 - b. Normal and non-standard operation modes
 - c. Interfaces with any other control systems associated with the project
 - d. Discussion of learnings from previous safety incidents at other similar sites
 - e. Development and preparation of a HAZOP/LOPA report and summary of recommendations
- 2) Creation of a Process Hazard Analysis based on the HAZOP/LOPA study, including the following:
 - a. Analysis of the fire and explosion hazards of the operation
 - b. Analysis of emergency relief from process vessels, taking into consideration the properties of the materials used and the fire protection and control measures taken
 - c. Analysis of local conditions, such as exposure to and from adjacent properties and exposure to floods, hurricanes, fires, etc.
 - d. Analysis of the emergency response capabilities of the local emergency services
 - e. Analysis of minimum required fire protection design including fire flow, fire suppression, and foam
- 3) Development of an NFPA 59A Fire Protection Evaluation in accordance with NFPA 59A for small-scale facilities in accordance with Section 12.2, as required by Chapter 13, which shall determine the following:
 - a. The type, quantity, and location of equipment necessary for the detection and control of fires, leaks, and spills of LNG and other hazardous fluids
 - b. The type, quantity, and location of equipment necessary for the detection and control of potential non-process and electrical fires
 - c. The methods necessary for protection of the equipment and structures from the effects of fire exposure
 - d. Requirements for fire protection water systems

- e. Requirements for fire-extinguishing and other fire control equipment
 - f. The equipment and processes to be incorporated within the emergency shutdown (ESD) system or its subsystems
 - g. The availability and duties of individual plant personnel and the availability of external response personnel during an emergency
 - h. The personal protective equipment, special training, and qualification needed by individual plant personnel for their respective emergency duties as specified by NFPA 600
 - i. Requirements for other hazard protection equipment and systems
 - j. Review of requirements for containment and sizing of containment, where necessary
- 4) Fire and gas detection systems design documents to include the following:
- a. Riser diagram
 - b. Survivability requirements and fire ratings
 - c. Locations of initiation and notification devices
 - d. Identification of strobe intensity and speaker output ratings for each device
 - e. Identification of circuit class for each circuit
 - f. Sequence of Operations Matrix identifying the functions required by the alarm and control systems including the transmission of emergency signals being monitored or annunciated (including notification at the main gate control center)
 - g. Identification of system type (addressable or conventional) and all zoning
 - h. Locations of all surge suppressors (if required)
 - i. Identification of environmentally affected devices and required protective features (weatherproof)
 - j. Details on the installation of initiating and notification devices
 - k. Operations and maintenance requirements
- 5) Fire suppression systems design including:
- a. Basis of design information
 - b. Water supply information
 - c. Monitor types and locations, if applicable
 - d. Piping locations, sizes, lengths, and connection types, if applicable
 - e. Preliminary hydraulic calculations, as needed
 - f. Fire extinguisher layout
- 6) Development of process and instrumentation diagram drawings (P&IDs) for the site
- 7) Preparation of Process Flow Diagram (PFD) documents including the following:

- a. Major pieces of equipment with specifications
 - b. Flow direction through pipes
 - c. Manifolds, tees or other connections as line diagrams
 - d. Control valves, check valves, and other system appurtenances
- 8) Preparation of a detailed emergency response plan (ERP) / fire pre-plan detailing the following:
- a. Immediate actions upon incident
 - b. Staging areas and operations for the facility
 - c. On-scene IC size up
 - d. Defensive operations
 - e. Offensive operations including fire strategies and tactics
 - f. Fire suppression systems information
 - g. Application rates
- 9) Preparation of piping design for both LNG and natural gas vapor, including the following:
- a. Pipe sizing for the LNG piping based on hydraulic calculations
 - b. Vapor pipe sizing based on required flow rates
 - c. Instrumentation design
 - d. Fabrication drawings for the piping
- 10) External pressure builder design, including sizing
- 11) Design of a high-pressure offload system including the sizing of a Coriolis mass flowmeter for custody-transfer measurement of liquid LNG at the offload pump discharge header
- 12) Assumption of Engineer of Record (EOR) status for the piping design and fire protection elements described above

Deliverables to be produced as part of this project will include the following digitally sealed electronic files in PDF format:

- 1) NFPA 59A Fire Protection Evaluation report
- 2) Process Hazard Analysis Report
- 3) Fire and gas detection system design drawings
- 4) Fire suppression system drawings
- 5) P&ID drawings
- 6) Process Flow Diagram documents
- 7) Detailed piping design drawings

2.0 PROJECT SCHEDULE

Vertex understands the need for timely completion of this project and is prepared to commence work upon receipt of the Project Work Authorization Form. The project scope shall be completed based on the schedule detailed below:

- 1) HAZOP/LOPA Study shall be completed within two (2) weeks of project authorization
- 2) Process Hazard Analysis report to be completed within four (4) weeks of project authorization
- 3) The NFPA 59A Fire Protection Evaluation shall be completed within five (5) weeks of project authorization
- 4) Fire and Gas Detection and Fire Suppression system design drawings to be completed within five (5) weeks of client approval of fire protection evaluation
- 5) P&ID and piping design drawings to be completed within five (5) weeks of project authorization
- 6) PFD documents to be completed within five (5) weeks of project authorization

3.0 ASSUMPTIONS

This scope of work is based upon being provided accurate site plan drawings in AutoCAD format. Additionally, it is assumed that Sapphire is providing the process basis of design to Vertex, and that all controls are being designed by Sapphire's control vendor Incentrik.

4.0 EXCLUSIONS

Exclusions to this scope of work include, but are not limited to, the following items:

- 1) Preparation of system control design
- 2) Preparation of engineering criteria and/or system design drawings for any system apart from the Muskogee, Oklahoma Data Center
- 3) Construction administration support beyond the specific services listed; no coordination or management of contractor's services or schedule shall be provided
- 4) Review or design of systems and documents beyond what is listed in the scope of work

5.0 FEE FOR SERVICES

For this project as defined in Section 1.0 – Project Work Scope, compensation will be **One Hundred Eighty-Three Thousand Dollars (\$183,000)**. Progress invoices shall be submitted

monthly based on scope progress, if required. Payment will be due within 30 days of receipt of invoice for completed services. Any unpaid balance will be assessed a service fee of 1.5% per month.

Project fees shall be billed as follows:

	Milestones	VERTEX Fee
1.0	Milestone 1 Description	
	Upon completion of HAZOP/LOPA Study by two (2) engineers	\$ 9,200.00
2.0	Milestone 2 Description	
	Upon submission of the Process Hazard Analysis Report	\$ 15,300.00
3.0	Milestone 3 Description	
	Upon submission of NFPA 59A Fire Protection Evaluation Report	\$13,100.00
4.0	Milestone 4 Description	
	Upon submission of Fire and Gas Detection System Drawings	\$ 4,600.00
5.0	Milestone 5 Description	
	Upon submission of Fire Suppression System Drawings	\$ 4,600.00
6.0	Milestone 6 Description	
	Upon submission Process and Instrumentation Diagram Drawings	\$29,800.00
7.0	Milestone 7 Description	
	Upon submission of Process Flow Diagram Documents	\$29,800.00
8.0	Milestone 8 Description	
	Upon completion of detailed Emergency Response Plan	\$ 7,200.00
9.0	Milestone 9 Description	
	Upon submission of detailed Piping Design Drawings	\$33,400.00
10.0	Milestone 10 Description	
	Upon completion of External Pressure Builder Design	\$13,000.00
11.0	Milestone 11 Description	
	Upon completion of High-Pressure Offload System	\$16,000.00
12.0	Milestone 12 Description	
	Upon completion of site visit for observation of the installation	\$ 7,000.00
FEE TOTAL:		\$183,000.00

6.0 REIMBURSEMENT OF EXPENSES

Direct expenses incurred by Vertex due to flow testing fees, out-of-town travel, mailing fees, printing fees for hard copy drawings, and bulk reproductions shall be considered reimbursable expenses and invoiced on the basis of actual cost-plus ten percent (10%).

7.0 TERMS AND CONDITIONS

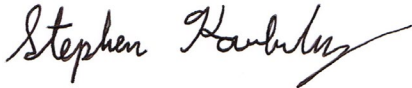
This proposal and subsequent agreement will be conducted in accordance with the attached Terms and Conditions. Please note that this proposal is valid for 30 days from the date notated above.

8.0 PROJECT AUTHORIZATION

Attached you will find a copy of the Project Work Authorization. Please sign and return it to Vertex, the receipt of which shall constitute our notice to proceed.

Thank you for the opportunity to submit this proposal.

Sincerely,



Steve Kowkabany, PE

Executive Vice President – Fire Protection and Life Safety Services

The Vertex Companies, LLC

PROJECT WORK AUTHORIZATION

Description of Services: Oklahoma Data Center Fire Protection Services

Project Location: Muskogee, OK

Proposal No. and Date: P.011160.25; December 23, 2025

Cost: \$183,000.00

CHARGE INVOICES TO THE ACCOUNT OF:

Client: Sapphire Gas Solutions
100 I-45 N., Suite 152A
Conroe, TX 77301

Phone/Email: 281-733-0814/jpirie@sapphireatgas.com

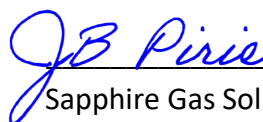
Billing Contact Information:

If the invoice is to be mailed for approval to someone other than the addressee of this proposal, please indicate in the space below.

Attn:**EMAIL:****Accounts Payable Phone#:****PAYMENT TERMS:**

Invoices for completed work will be issued by the calendar month for continuous or extended projects unless otherwise agreed. Payment is net thirty days.

This is a legal and binding contract between Sapphire Gas Solutions and The Vertex Companies, LLC as referenced in the attached proposal of this date and described above.

FEE FOR SERVICES ACCEPTED BY:
Sapphire Gas Solutions

Date: 01/06/26

APPENDIX A
TERMS AND CONDITIONS

1. Access:

- a. Client agrees to provide Consultant with timely access to information, locations, and personnel reasonably necessary for the performance of the Services.
- b. Client acknowledges that subsurface or other concealed conditions on, below, or about the Project Site may vary from those conditions encountered in specific borings, surveys or explorations performed by Consultant and that the information and recommendations developed by Consultant are based solely on the information available from such borings, surveys, and explorations.
- c. Client grants to Consultant the right of entry to the geographical location where the services are to be performed ("Project Site") by its employees, agents, consultants, contractors, and subcontractors, for the purpose of performing the services. Client represents that it has obtained the needed permits and licenses for the services, including the making of surveys, test borings and other environmental investigations as described in the Proposal. If Client does not own the Project Site, Client warrants and represents to Consultant that it has the authority and permission of the owner and/or occupant of the Project Site to grant the right of entry to Consultant.

- 2. Client and Third Party Work Product:** The information provided by Client to Consultant shall be considered "as is" and Consultant will not validate or confirm the accuracy of the data and information provided. It is further understood that Consultant may be reviewing work product prepared by parties other than Consultant on behalf of Client, and accordingly, Client agrees to hold harmless and indemnify Consultant for all claims, damages, demands, liability and costs (including attorney fees as incurred) arising from negligent acts, errors and omissions of the parties who prepared such work product.

- 3. Preliminary Findings and Draft Reports:** The preparation of Consultant work product is an evolving process during which

Consultant analysis is focused and refined as research and document review proceeds and as information emerges. Preliminary conclusions, superseded drafts, notations, analyses, work lists, and irrelevant data are not a part of, and will not be recorded in, the final work product. Such documents may be appropriately discarded on a routine basis as work tasks are completed. Of course, circumstances may arise that require the retention of such drafts or other interim documents, including but not limited to subpoenas and court orders. Consultant understands that Client will provide it with any instructions regarding document retention or document production procedures that Client expects Consultant to follow.

4. Consulting Services Disclaimer:

Consultant will not audit any financial statements or performing any attest procedures while performing the Services under this Agreement. Consultant's Services are not designed, nor should they be relied upon, to disclose internal weaknesses in internal controls, financial statement errors, irregularities, illegal acts, or disclosure deficiencies. Consultant is not a professional accounting firm and does not practice accounting. Consultant's Services will not include accounting, legal or architectural advice or services.

- 5. Independent Contractor:** It is understood and agreed that Consultant will for all purposes be an independent contractor, will not hold itself out as representing or acting in any manner for Client, and neither Consultant nor Client will have any authority to bind the other party to any contract or in any other manner. Consultant and Client do not intend to create a joint employer relationship, and Consultant and Client each represent that it is the sole employer of its employees. Consultant shall not and does not have the right to control Client's employees' essential terms and conditions of employment, including hiring its employees, determining their wages and benefits, or assigning, scheduling, training, disciplining, or terminating its employees.

- 6. Standard of Care and Performance:** Consultant agrees that the Services provided

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for herein will be performed in a professional manner in accordance with recognized professional consulting standards for similar services and that qualified personnel will be assigned for that purpose. In providing the Services, Consultant and its personnel shall exercise reasonable care. Consultant cannot guarantee or assure the achievement of any performance objective, nor can Consultant guarantee or assure any particular outcome for Client or any other person as a result of this Agreement or the performance of the Services.

If, during the performance of these Services or within one year following completion of the Agreement, such Services will prove to be faulty or defective by reason of a failure to meet such standards, Consultant agrees that upon prompt written notification from Client prior to the expiration of the one-year period following the completion of the Agreement of any such fault or defect, such faulty portion of the Services will be redone at no cost to Client up to a maximum amount equivalent to the cost of the Services rendered under this Agreement. THE FOREGOING WILL CONSTITUTE CONSULTANT'S SOLE WARRANTY WITH RESPECT TO THE ACCURACY OR COMPLETENESS OF THE SERVICES AND THE ACTIVITIES INVOLVED IN ITS PREPARATION, AND IS MADE IN LIEU OF ALL OTHER WARRANTIES AND REPRESENTATIONS, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

7. **Safety:** Consultant's responsibility for the safety of persons on the Project Site shall be limited to its own personnel and its subcontractors and any other persons over whom Consultant has control on the Project Site. This shall not be construed to relieve the Client or any of its contractors from their responsibilities for maintaining a safe job site. Neither the professional activities of Consultant, nor the presence of Consultant's employees and its subcontractors shall be construed to imply that Consultant has any responsibility for any activities on the Project Site performed by personnel other than Consultant's employees or subcontractors.

Consultant will comply with the reasonable requirements of any applicable health and safety plan provided to it by Client.

8. **Control of Project Site:** If the services to be performed under this Agreement are to be performed on property controlled by Client, Client acknowledges that it is now and shall always remain in control of the Project Site. Client also understands that the discovery of certain hazardous substances and conditions and/or the taking of preventive measures relative to these substances and conditions may result in a reduction of the value of the property upon which the substance or condition is found to exist or the preventative measures are taken. Accordingly, Client waives any claim against Consultant and its subcontractors and agrees to defend, indemnify and hold Consultant and its subcontractors harmless from any claim based upon the diminished value of real property allegedly arising from the discovery of a hazardous substance or condition or the taking of a preventative measure, unless such claim is based upon the negligent performance of services under the scope of work in the Agreement.
9. **Existing Site Information:**
- a. Client shall furnish or cause to be furnished to Consultant all information known to Client that relates in any manner to subsurface hazards, or man-made obstructions, or hazardous conditions or materials on the Project Site, including but not limited to, hazardous wastes, hazardous substances, underground storage tanks, ACM, pipelines and utility lines. Consultant shall be entitled to rely upon the information provided by Client. Failure to notify Consultant of any of the above listed subsurface hazards or conditions known to Client shall result in Client assuming full liability for all costs, expenses and damages incurred by Consultant as a result of such failure. Consultant shall not be liable for damage or injury arising from damage to subterranean structures, which are not called to Consultant's attention or correctly shown on the documents furnished to Consultant.
- b. If the presence of an unanticipated hazardous substance or condition is discovered during the performance of the

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scope of work in the Agreement which could pose a hazard to Consultant's employees, agents and subcontractors, Consultant shall cease work and determine the necessary health and safety precautions to continue. The cost of these necessary health and safety precautions will be incorporated into the agreement through a written amendment signed by the parties.

10. Subsurface Exploration and Material Sampling:

a. Consultant will take reasonable precautions to avoid any damage to the Project Site from the activities of its crews or equipment. However, unavoidable damage caused in the execution of the work such as tire rutting, cutting, and splicing of fences, removal of ACM core samples in insulation, pipe wrap, drilling through pavements, etc., will not be restored unless otherwise stated in the Proposal.

b. In addition, Client recognizes that commonly used subsurface exploration methods (including but not limited to drilling borings, pushing, or driving probes, or excavating trenches) involve an inherent risk. These exploration methods may penetrate through a stratigraphic unit bearing hazardous substances and serve as a connecting passageway between such stratigraphic unit and an uncontaminated stratigraphic unit or groundwater, thus potentially inducing cross-contamination. In accordance with current design, backfilling with grout or by other means is intended (but does not guarantee) to provide a seal against such a passageway. However, Client recognizes that such a seal may be imperfect and that there is an inherent risk in drilling borings, pushing, or driving probes, excavating trenches, or implementing other methods of exploration at or near a site contaminated by hazardous substances. Further, Client recognizes that these are not the only risks which may encountered but are simply examples of consequences which cannot be anticipated or avoided in many cases, even through the exercise of the required Standard of Care. Client accepts these and all similar risks and releases Consultant from all liability that may be incurred due to aquifer cross contamination

resulting from the services provided by Consultant, provided that such services were performed in accordance with the required Standard of Care.

11. Analytical Testing: If required under the Agreement scope of work, Consultant will perform, or will retain the services of third-party analytical laboratories to perform, analytical tests in accordance with current standard characterization techniques (e.g., standard methods, ACM, EPA methods).

12. Disposal of Contaminated Samples and Exploration Debris:

a. Consultant shall retain samples of soil, rock, waste or other materials contaminated by hazardous substances, including ACM, obtained from the Project Site for not longer than thirty (30) calendar days after issuing written test results, unless otherwise mutually agreed upon in writing, but such samples shall always remain the exclusive property of Client. Unless indicated otherwise, Consultant, acting as Client's agent, may plan for proper transportation and disposal of the samples with appropriate licensed parties or may return the samples to Client. Client agrees to pay all transportation and disposal costs and provide a manifest signed by Client as generator for transportation to a disposal site selected by Client, or Consultant will return the samples to the Project Site.

b. Client shall be the owner of all exploration debris, cuttings, pumping's, and borings generated by Consultant during the performance of the Scope of Work. If requested by Client, Consultant, as agent of Client, shall arrange for the proper disposal of all exploration debris, cuttings, pumping's, and borings generated during Consultant's activities. Disposal of contaminated exploration debris shall be at the price set forth in the Proposal/ Fee Schedule. If the Proposal/Fee Schedule is silent, then the fee for the disposal of all exploration debris, cuttings, pumping's, and borings shall be Consultant's direct cost plus ten percent (10%) multiplier.

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13. Field Monitoring: If Consultant's services include monitoring of work performed by other contractors, under no circumstances shall Consultant have the right or obligation to stop or direct the contractor's work. Consultant may, but is not obligated to, provide data and observations to Client. Consultant shall not assume responsibility for the contractor's means, methods, techniques, sequences, or procedures and Consultant's services shall not relieve the contractor of its responsibilities for performing the work in accordance with the plans and specifications and applicable laws and regulations. Continuous monitoring by Consultant's employees does not mean that Consultant is observing all activities of the contractor or any other activities on the Project Site. If Consultant is not retained to monitor remedial construction or ACM abatement recommended by Consultant, Client waives any claim against Consultant arising from the negligence of others during such construction or ACM abatement and agrees to indemnify, defend and save Consultant harmless from any claim, liability for injury, or loss arising from the performance of such remedial construction or ACM abatement.

14. Sampling or Test Location: Unless otherwise stated in the proposal or elsewhere in this Agreement, the fees do not include costs associated with surveying the Project Site for accurate horizontal and vertical locations of tests or samples which, when referenced in Consultant's report, are based on information furnished by others and/or estimates made by Consultant's personnel and are only to be considered approximations unless otherwise stated. Consultant may deviate a reasonable distance from any test or sampling location specified by Client. If, in order to complete a given boring to its designated depth, a re-drilling is necessitated due to the presence of impenetrable subsurface objects, all associated costs, including the original boring and all re-drilling, will be charged at the appropriate rates as specified in the Fee Schedule, or if no Fee Schedule is provided, then the re-drilling shall be charged at Consultant's direct cost plus ten percent (10%) multiplier.

15. Termination: Either party may terminate this Agreement without cause upon no less than thirty (30) days' written notice of termination to the other party; provided however the foregoing without cause termination provision shall not apply when any portion of the professional fees to be paid to Consultant under this Agreement are contingent upon the achievement of certain milestones, deliverables, results or other metrics mutually agreed upon by the parties. In the event of termination for any reason, Client will pay Consultant for all fees and expenses incurred through the effective date of termination as well as reasonable engagement closing costs.

16. Intellectual Property: Upon full payment of all amounts due Consultant in connection with this Agreement, all rights, title and interest in any information and items, including summaries, documents, reports and portions thereof Consultant provides to Client (the "Consultant Deliverables") will become Client's sole and exclusive property for its internal business purposes and uses pursuant to the scope set forth in the applicable SOW, subject to the exceptions set forth below. Consultant shall retain sole and exclusive ownership of all rights, title and interest in its work papers, proprietary information, processes, methodologies, know-how and software, including such information as existed prior to the delivery of the Services and, to the extent such information is of general application, anything that it may discover, create or develop during provision of the Services ("Consultant Property"). To the extent the Consultant Deliverables contain Consultant Property; Client is granted a non-exclusive, non-assignable, royalty-free license to use it in connection with the subject of this Agreement.

17. Consultant Deliverables: Consultant provides the Services and Consultant Deliverables solely for Client's internal use and benefit. The Services and Consultant Deliverables are not for a third party's use, benefit or reliance and Consultant disclaims any contractual or other responsibility or duty of care to any third party based upon the Services or Consultant Deliverables. Except

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as described below, Client shall not discuss the Services with or disclose Consultant Deliverables to any third party or otherwise disclose the Services or Consultant Deliverables without Consultant's prior written consent, which may be conditioned upon such third party agreeing to non-reliance and indemnification language satisfactory to Consultant. Client will indemnify and hold Consultant harmless from all claims asserted by a third party because of such unauthorized release of the Consultant Deliverables or reliance on the Services.

The Services and Consultant Deliverables, including any oral advice or comments, should not be associated with, referred to, or quoted in any manner in any financial statements or any offering memorandum, prospectus, registration statement, public filing, loan, or other agreements.

Client may disclose the Consultant Deliverables to or discuss information relating to the Services (a) as required by law; (b) as required by any government or regulatory agency with supervisory authority over Client; and (c) with Client's legal advisors, financial advisors, financing representatives and auditors which are acting solely for Client's benefit and on Client's behalf and which have a need to know such information in order to provide advice or services to Client.

18. Confidentiality:

(a) "Confidential Information" means the confidential information to be disclosed under this Agreement including certain proprietary information, which may include but is not limited to, strategic planning, financial data, business plans, trade secrets, technical data, computer programs, policies, procedures, benchmarking, know-how, methodologies, discoveries, ideas, concepts, techniques, designs, specifications, drawings, blueprints, diagrams, flow charts, marketing plans, customer names, claims information, and other technical, financial, or business information not generally known in the

marketplace, and Personally Identifiable Information as defined below.

- (b) "Personally Identifiable Information" means all information that can be used to identify an individual, as may be defined in applicable information security and privacy laws, and includes "Nonpublic Personal Information" ("NPI"), as defined under the Gramm-Leach-Bliley Act (15 U.S.C. §6801 et seq.) and "Protected Health Information" ("PHI"), as defined under the Health and Insurance Portability and Accountability Act of 1996 (42 U.S.C. §1320d) ("HIPAA.")
- (c) The party disclosing the Confidential Information will be referred to as the "Disclosing Party" and the party receiving the Confidential Information will be referred as the "Recipient." It is understood that one party can, at certain times, be a "Recipient" and at other times a "Disclosing Party."
- (d) Recipient agrees that neither it, nor any of its employees, officers, directors, agents, and representatives who need to know such information (collectively, its "Representatives") will: (a) in any fashion or for any purpose use the Confidential Information except for the purpose set forth in the applicable SOW; or (b) disclose, divulge, publish or disseminate the Confidential Information except as expressly authorized by this Agreement. Recipient further agrees that it and its Representatives will: (y) take all reasonable measures to protect the confidentiality of, and avoid disclosure or use of, the Confidential Information so as to prevent it from entering the public domain or falling into the possession of persons other than those authorized by this Agreement to have access to it; and (z) only permit those Representatives of Recipient who are authorized to participate, directly or indirectly, to have access to Confidential Information.
- (e) Confidential Information shall not include any information (a) previously known by the Recipient, (b) independently developed by the Recipient, without use of any Confidential Information, (c) acquired by the Recipient from a third

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party that is not, to Recipient's knowledge after due inquiry, under any legal obligation not to disclose such information or (d) that is, or becomes, public through no breach by the Recipient of this Agreement.

- (f) Accordingly, each party agrees, subject to applicable law or court order, not to disclose any of its communications, or any of the information it receives and develops in the course of the Services, to any person or entity apart from the other party and such other persons or entities as the other party may designate.
- (g) If access to any of the materials and information in Consultant's possession relating to this Agreement are sought by a third party, or any of its professionals are requested or compelled to testify as a fact witness in any legal proceeding related to this Agreement, by subpoena or otherwise, or it is made a party to any litigation related to this Agreement, Consultant will promptly notify Client of such action, and either tender to Client its defense responding to such request and cooperate with Client concerning Consultant's response thereto or retain counsel for its defense. In such event, Client shall compensate Consultant at its standard billing rates for its professional fees and reimburse Consultant's expenses, including reasonable attorneys' fees (internal and external), involved in responding to such action.
- (h) If any of Consultant's professionals are asked to provide testimony, it may be necessary for him or her to resist efforts by a third party to elicit confidential and proprietary materials of Consultant and other Consultant Clients. Consultant will make all reasonable efforts to protect the interests of Client, consistent with its need to protect Consultant's Confidential Information as well as the Confidential Information of other Consultant Clients and to comply with Consultant's applicable non-disclosure obligations herein.

- (i) Consultant shall implement and maintain commercially reasonable administrative, technical, and physical safeguards designed to secure the Confidential Information sufficient to comply with applicable law.
- (j) The confidentiality obligations in this Section 10 (Confidentiality) shall survive the termination or expiration of this Agreement.

19. Data Protection: By accepting these terms of engagement, Client is giving positive consent for Consultant to obtain, store and process any Confidential Information acquired by Consultant in the course of this engagement.

Client agrees that Consultant may provide any such Confidential Information to any other Consultant entity or other third party. Where the provision of Consultant's services involves the processing of personal data belonging to employees, customers or other third parties, Client represents that Client has acquired the necessary consent before providing the relevant data to Consultant or that Client is otherwise entitled to provide it to Consultant.

In the event that Consultant's Services require Consultant to process personal data of individuals located in the European Union or Switzerland, any such processing will be governed by the standard contractual clauses approved by the European Commission.

20. Use of Data: Notwithstanding any other term or provision in the Agreement, Client permits Consultant to use Client's data for purposes other than those set forth in this Agreement; provided however that any Personally Identifiable Information in such data shall be rendered de-identified.

21. Conflicts of Interest: Consultant is not aware of circumstances that constitute a conflict of interest or that would otherwise impair Consultant's ability to provide objective assistance. Consultant's determination of conflicts is based primarily on the substance of its work and not the

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parties involved. Consultant is a large consulting company that is engaged by many companies and individuals. Consultant may have in the past represented, may currently represent or may in the future represent other Clients whose interests may have been, may currently be, or may become adverse to Client in litigation, transactions, or other matters (collectively "Other Clients"). Therefore as a condition to Consultant's undertaking to provide the Services to the Client, Client agrees that Consultant may continue to represent, and in the future may represent, Other Clients provided however that Consultant agrees that it will not accept retentions by Other Clients that would be adverse to Client in the same legal proceeding on the factual matters that are the subject matter of an engagement set forth under the applicable SOW.

22. Limitation of Liability: Notwithstanding the terms of any other provision, the total liability of Consultant and its Affiliates, directors, officers, employees, subcontractors, agents and representatives for all claims of any kind arising out of this Agreement, whether in contract, tort or otherwise, shall be limited to fees paid to Vertex during the 12 months preceding the action (or inaction) giving rise to the liability. Neither Consultant nor Client shall in any event be liable for any indirect, consequential, or punitive damages, even if Client or Consultant have been advised of the possibility of such damages. No action, regardless of form, arising out of or relating to this Agreement, may be brought by either party more than one year after the cause of action has accrued, except an action for non-payment may be brought within one year following the date of the last payment due under this Agreement. Consultant shall not be liable for any loss or destruction of any valuable documents provided to Consultant. Client shall be responsible for insuring such documents against loss and destruction.

23. Sanctions Representations: Client represents and warrants the following: (a) Client is not subject to United States ("U.S."), European Union ("EU"), United Kingdom ("UK"), United Nations ("UN"), or other applicable sanctions or export restrictions; (b) Client does not have any nexus with persons

or entities on any U.S., EU, UK, UN, or other applicable sanctioned/restricted parties list, including the U.S. Treasury Department, Office of Foreign Assets Control's ("OFAC") Specially Designated Nationals and Blocked Persons ("SDN") List, either through shareholders, controlling individuals or entities, employees, beneficial owners, vendors, affiliated entities (i.e., affiliates or subsidiaries), third parties, customer base, or otherwise; (c) Client does not have any operations in, and is not owned by or otherwise acting on behalf of an entity located or headquartered in, any jurisdiction subject to comprehensive U.S. sanctions (currently, Cuba, Iran, Syria, North Korea, the Crimea region, the so-called Donetsk People's Republic ("DNR") region, and the so-called Luhansk People's Republic ("LNR") region) or comprehensive EU, UK, and/or UN sanctions; (d) Client does not have any operations with or derive any revenue from, and is not acting for or on behalf of, any jurisdiction or person, including any government, political party, or other individual or entity, subject to U.S., EU, UK, UN, or other applicable sanctions or export restrictions, unless authorized by applicable law; and (e) Client shall not remit payment for Consultant's fees and expenses from revenues derived by activities involving, nor directly or indirectly utilize Consultant's Services or Deliverables for the benefit of, any sanctioned country, region, or person, unless authorized by applicable law. Client has in place policies and procedures designed to ensure compliance with applicable sanctions and other export restrictions and shall not engage in any activity during the course of its engagement with Consultant that could cause Consultant to violate any applicable law or regulation.

24. Resolution of Disputes: To promote rapid and economical resolution of disputes that may arise, any and all disputes or claims related to or arising from this Agreement, except claims by Consultant for non-payment of amounts owed hereunder, shall be resolved by final, binding and confidential arbitration conducted in New York, New York by JAMS Inc. (formerly Judicial Arbitration and Mediation Services) ("JAMS") under the then-applicable JAMS rules, including its optional appellate procedure

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if the parties so elect. The parties hereby waive their rights to have any such disputes and claims litigated in a court or by a jury. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. In any arbitration (or litigation in the case of claims by Consultant for nonpayment of amounts owed hereunder), the prevailing party shall be entitled to recover from the other party reasonable costs and expenses, including reasonable attorneys' fees, incurred in enforcing this Agreement and reasonable attorneys' fees and costs incurred in obtaining, appealing or enforcing any judgment entered by the arbitrator or the court. The waiver of a breach of any provision of this Agreement by the other party shall not operate or be construed as a waiver of any subsequent or additional breach.

25. Restriction on Use of Personnel: Client agrees that during the term of this Agreement (including any renewals and extensions thereof), and for a period of one year following the termination of the applicable SOW ("Restriction Period"), neither Client nor any affiliate, parent or subsidiary thereof will knowingly employ or engage as an independent contractor, consultant or otherwise, any person who, during the Restriction Period, is or was an employee or independent contractor of Consultant that provided Services under the applicable SOW; provided however that the foregoing shall not prohibit Client from employing an individual who responds to a general advertisement for employment (whether or not made by a professional search firm).

26. Disposition of Documents: At the conclusion of the Services, Client will have the following options with respect to disposition of documents related to this Agreement. Client may (a) direct Consultant to return all such documents to Client at the Client's expense; or (b) authorize Consultant to discard or destroy all documents. In limited circumstances, Consultant may agree to store Client engagement documents at Client's expense. The terms and pricing for all storage, as agreed by the parties, will be provided to the Client at the beginning of any

storage period. If the Client does not request option (a) or (b) above within sixty (60) days after the conclusion of the Services under the applicable SOW, Consultant will, to the extent practicable, implement option (a). Consultant may retain a copy of its reports and work papers for its internal recordkeeping purposes or compliance with applicable professional standards.

27. Third Party Beneficiaries: This Agreement does not and is not intended to confer any rights or remedies upon any person or entity other than the parties.

28. Force Majeure: Consultant shall not be deemed in default of any provision of this Agreement or be liable for any delay, failure in performance, or interruption of the Services resulting directly or indirectly from acts of God, electronic virus attack or infiltration, civil or military authority action, civil disturbance, war, epidemic, strike and other labor disputes, fires, floods, other catastrophes, and other forces beyond its reasonable control making it commercially impracticable to perform the obligations of this Agreement.

29. Notices: All notices given under or pursuant to the Agreement will be sent by Certified or Registered Mail, Return Receipt Requested, and will be deemed to have been delivered when physically delivered to Client or Consultant at the following address:
If to Consultant:

The Vertex Companies LLC
1502 Roberts Drive
Jacksonville Beach, FL 32250

With a copy to:
The Vertex Companies, LLC
Attention: Office of the General Counsel
legal@vertexeng.com

If to Client:
Sapphire Gas Solutions
100 I-45 N., Suite 152A
Conroe, TX 77301

30. Publicity: Client and Consultant agree to submit to the other all advertising, written sales promotion, press releases and other

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publicity matters relating to this Agreement in which the other party's name or mark is mentioned or language from which the connection of such name or mark, and will not publish or use such advertising, sales promotion, press releases, or publicity matters without prior written approval of the other party. Notwithstanding any other provision, Consultant may include Client's name, and a factual description of the work performed under this Agreement in its list of references and in the experience section of proposals to third parties, in internal business planning documents and in its annual report, and whenever required by reason of legal, accounting or regulatory requirements.

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